UNIT-4:
Intellectual Property Rights (IPR)

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Introduction

- Intellectual Property (IP) is a category of property created by the human intellect (mind) in the fields of the arts, literature, science, and trade.
- IP is intangible (invisible and indivisible)
- Intellectual Property Rights (IPR) are the privileges granted to creators and inventors (of IP) in compliance with the laws.
- Intellectual property (IP) refers to creations of the mind,
  - such as inventions; literary and artistic works; designs; and symbols, names, images, and logos, used in commerce.
  - It's an asset that can be protected through various legal mechanisms.

Significance of IP

- IP rights are crucial for several reasons:
  - Incentivizing Innovation: They encourage creativity and innovation by providing exclusive rights to creators and inventors.
  - Economic Growth: IP-intensive industries contribute significantly to economic growth and job creation.
  - Protecting Investments: IP rights safeguard the investments made in research and development.
  - Fair Compensation: They enable creators to receive fair compensation for their work.

Types of Intellectual Property

- **Copyright and Related Rights**
- **Industrial Property Rights**
    - Patents
    - Trademarks
    - Industrial Designs
    - Geographical Indications

Types of Intellectual Property

- **Copyright and Related Rights:**
  - safeguards original creative expressions in fields like literature, art, music, and software.
  - It protects works such as books, poems, songs, paintings, sculptures, films, and computer programs.

- **Industrial Property Rights:**
  - focuses on protecting inventions, brands, and designs used in commerce.
  - It includes:
    - **Patents:** Legal rights granted to inventors for their novel inventions.
    - **Trademarks:** Distinctive signs, logos, or symbols used to identify goods or services.
    - **Industrial Designs:** The ornamental aspects of a product.
    - **Geographical Indications:** Products linked to a specific geographical origin and quality.

How to protect IP?

- To safeguard IP, consider these steps:
  1. **Register IP:** Formal registration provides legal proof of ownership.
  2. **Use Copyright Notices:** Add © or ® symbols to your work.
  3. **Maintain Confidentiality:** Keep your ideas secret until you're ready to disclose them.
  4. **License IP:** Grant permission to others to use your work under specific terms.
  5. **Take Legal Action:** If the IP is infringed, seek legal advice.

Patent

- Patent is an exclusive right granted for an innovation that generally provides a new way of doing something or offers a new technical solution to a problem.
- Invention must be novel (new; not in the public domain), not obvious to the person (s) skilled in the art and must be of industrial use.
- In India, Patents are governed by the Patent Act, 1970 & administered by Ministry of Commerce, GoI
- Patent Rights are protected for a period of 20 yrs & should be renewed every year. In return, the process of the invention must be disclosed in the public domain.
- As per Section 47 of the Act, a patent may be used by any person for teaching and research purposes. It will not be considered an infringement.
- **Items that cannot be patented:** According to The Patent Act, 1970, the following items fall under the category of no-patentability criteria:
  - a discovery, scientific theory or mathematical method; a computer program; a presentation of information; a procedure for surgical or therapeutic treatment, etc..

	COUNTRY	TOTAL PATENT GRANTS 2023 ↓	PATENT APPLICATIONS 2023
	China	798,347	1,619,268
	United States	323,410	594,340
	Japan	201,420	289,530
	South Korea	135,180	237,633
	India	30,490	77,068
	Germany	23,592	57,213
	Brazil	23,546	24,759
	Russia	23,315	26,924
	Canada	18,125	38,052
	Australia	16,407	32,284

No. of patents in 2024

- **Samsung Electronics:** 6,377 patents
- **LG Corporation:** 5,156 patents
- **Taiwan Semiconductor Manufacturing Company (TSMC):** 4,010 patents

Designs/Industrial Designs

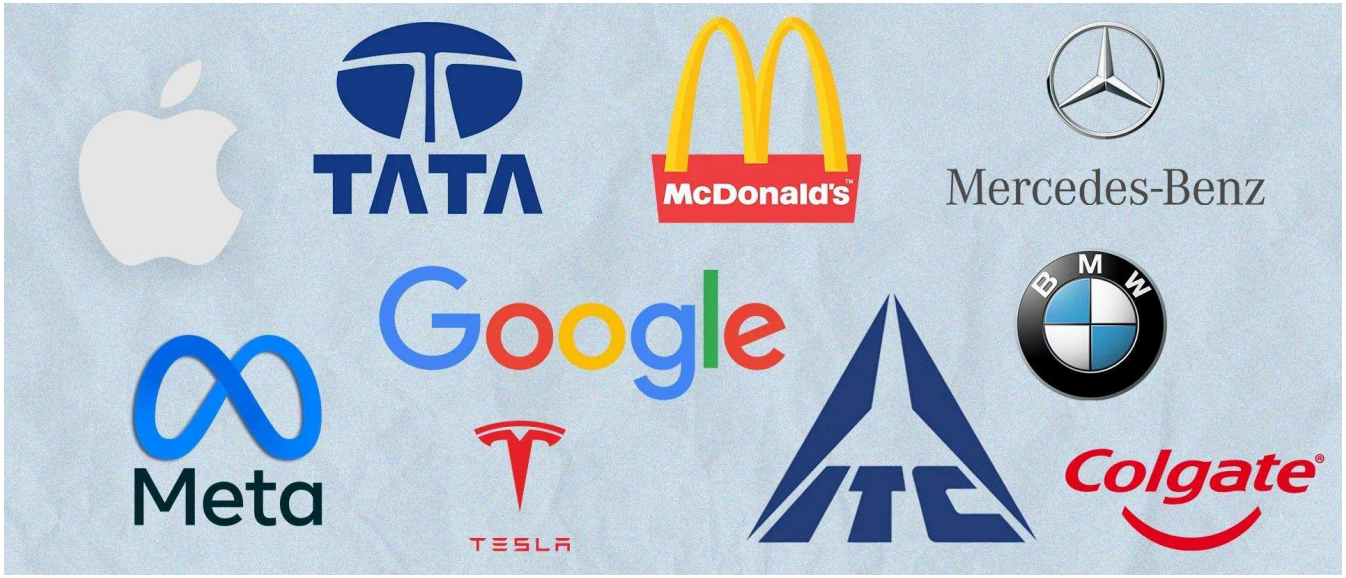
- the features of shape, configuration, pattern, ornament or composition of lines or colours applied to any article.
- protects the original creativity of the originator and encourage others to work towards the art of creativity
- Design must be novel or original and should be significantly distinguishable from the already registered Designs existing in the public domain.
- In India, Industrial Designs are governed under 'The Designs Act', 2000 and 'Design Rules', 2001 and have been amended from time to time.
- The registered Designs are protected for 10 years in India and can be extended by 5 years after making a renewal application.
- **Items which cannot be registered as Industrial Design:**
  - Flags, emblems or signs of any country, and any Industrial Design which is against public moral values.

Trademark

- A Trademark (or Trade Mark) is a unique symbol that is capable of identifying as well as differentiating products or services of one organization from those of others.
- A trademark must be unique and not resemble existing marks.
- The trademark should not describe the goods or services.
- In India, Trademarks are governed under The Trademarks Act, 1999 and ruled under Trademarks Rules, 2002.
- In India, a registered Trademark is valid for 10 years. The period can be extended every 10 years, perpetually
- **What cannot be registered as Trademarks:**
  - Marks that cannot distinguish the goods or services of one person from another.
  - Descriptive trademarks that directly describe the goods or services.
  - Marks that hurt religious sentiments or are obscene.
  - Well-known trademarks, even if the goods are not similar.

What a trademark can be

- **Word or phrase:** A name like "Apple" or a slogan like McDonald's "I'm lovin' it".
- **Symbol or design:** A company logo, like the Nike "swoosh".
- **Shape or packaging:** The unique shape of a Coca-Cola bottle.
- **Color combination:** The red and white used by Coca-Cola.
- **Sound or music:** A distinctive theme tune, such as Airtel's advertisement music.



Copyright

- legal rights provided by law to the original creator of the work in the fields of literature and computer software.
- The ‘Related Rights’ encompasses the author’s work in the fields of dramatics, sound recording, film/video recordings, paintings, architecture, etc.
- To qualify for copyright protection, a work must be in a tangible form and created independently by the author.
- The Copyright Act of 1957 grants authors the rights to reproduce, distribute, adapt, and translate their works.
- Copyright law grants authors exclusive rights to their work, including the rights to reproduce, distribute, and adapt it.

Rights of Property

Property	Rights	Act	Rules
Patent	Patent protects any invention	The Patents Act, 1970 (“Patents Act”)	The Patent Rules 2003
Design	The features of shape, configuration, pattern, ornaments or composition of lines or colours, applied to any article	The Design Act, 2000 (“Design Act”)	The Design rules 2001
Trademark	Trademark provides protection for symbols, colors, shapes, words, etc. representing and relating to a good or a service.	The Trade Marks Act, 1999 (“Trade marks Act”)	The Trademark Rules - 2002
Copyright	Copyright provides protection to the expression of an idea rather than the idea itself.	The Copyrights Act, 1957 (“Copyright Act”)	The Copyrights rules 2013